

Superior Court of California, County of Tuolumne

Consolidated Calendar

Hon: Sarah Carrillo

Department 2

August 28, 2026

8:30 am

DA Case #

Date Filed

8 CV67334 Thomas Knowlton vs. Henry Speeth

06/11/2025

Thomas Knowlton

Attorney: Colin Jones

Henry Speeth

Attorney: Marissa
Vandersluys

Henry Speeth

Attorney: Marissa
Vandersluys

Motion Hearing - Compel

Dumurrer

Case Management Conference

FURTHER

06/11/2025 Complaint

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07/22/2025 High Density

This is a personal injury action, arising out of an automobile accident. Before the Court this day is defendant's motion to compel plaintiff's attendance at an independent medical examination with a neuropsychologist. The parties do not disagree regarding the propriety of an DME in the abstract; rather, they disagree over plaintiff's right to audiotape the examination and/or receive copies of testing material.

The right to audiotape the examination is a given. The Legislature has already made plain that plaintiff "shall have the right to record a mental examination by audio technology." CCP §2032.530(a); in accord, *Carpenter v. Superior Court* (2006) 141 Cal.App.4th 249, 271. Since plaintiff can bring in a device to record the examination, and leave with the device, plaintiff can obviously retain a recording thereof. The protective order keeps plaintiff and his attorney from sharing the recording with others. It hardly seems that different from a deposition.

The harder question is whether this Court should exercise its discretion to order the release of the raw testing materials and data. The decision in *Randy's Trucking, Inc. v. Superior Court* (2023) 91 Cal.App.5th 818, which both parties cite, holds only that neither CCP §2032.610 nor federal regulations impose any prohibitions against a trial court's presumed authority to order disclosure of these items. *Id.* at 848 ["Defendants and amici curiae urge us to create a bright-line rule limiting transmission of neuropsychological and psychological testing materials and raw test data, as well as audio recordings of examinations, to licensed neuropsychologists or psychologists ... The Legislature, however, has not codified the expert-to-expert limitation advocated by defendants and amici curiae. On this writ, our role is simply to determine whether, based on the rules of evidence, the trial court abused its discretion in ordering transmission of these materials to plaintiffs' attorney subject to a protective order."] As noted last year by the Iowa Supreme Court in *Burton v. West Bend Mutual Ins. Co.*, 17 N.W.3d 340, 345 (2025): "these cases allow disclosure based on a balancing of one party's need for the information against the ethical restraints imposed on licensed psychologists, the commercial interests of the testing companies, and the need to protect the scientific validity of the testing instruments – which could be impaired from wide disclosure of the testing material." However, the Nevada Supreme Court this year, citing *Randy's*, thought the concerns were overblown: "Just as the courts in *Randy's Trucking*, *Wright*, *Cook*, and *Glennon* found, (1) disclosure of data to those other than a neuropsychologist is proper, as plaintiffs should not be required to hire a neuropsychologist to attack the credibility of defense experts and effectively cross-examine the experts; (2) a protective order can effectively alleviate confidentiality concerns; and (3) speculative concerns about disclosure do not outweigh the right of the plaintiff to access the data." *Powers v. District Court County of Clark*, 142 Nev. Adv. Op. 35 at *7 (2026).

The Court has remaining questions to be answered by the parties: What is the good cause" offered by plaintiff for needing the raw data and testing materials? What does possession of the raw data do for counsel in preparing for the case? Plaintiff has not adequately explained the good cause for needing this, nor has defendant explained the lack of good cause for releasing it. The Court may consider an in camera review of the matter, but will hear additional argument from counsel.